

Insolvency Act, 2006

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Chapter 1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Insolvency Act, 2006 (2063)."

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Company" means a company established in accordance with the prevailing company law, and said term shall also include other organized institutions with limited liability specified by the Government of Nepal by publishing a notice in the Nepal Gazette.

(b) "Insolvent" means a situation where a company is unable or appears unable to pay any or all debts due or payable in the future to a creditor, or where the amount of the company's liabilities exceeds the value of its assets.

(c) "Financial Difficulty" means a situation where, without restructuring under this Act, a company is or is likely to become insolvent immediately or in the near future.

(d) "Dissolution of a Company" means the state where the registration of a company has been cancelled upon completing the process under this Act.

(e) "Restructuring" means the process adopted under this Act to restructure a company that is in financial difficulty and may become insolvent.

(f) "Restructuring Program" means a restructuring program as provided in Chapter 4.

(g) "Court" means the Commercial Bench of the Court specified by the Government of Nepal by publishing a notice in the Nepal Gazette, upon consultation with the Supreme Court.

(h) "Debt" means a definite sum of money remaining to be paid immediately or claimed as payable.

(i) "Creditor" means a person entitled to receive payment from a company that is or may become insolvent, and said term shall also include a secured creditor.

(j) "Security" means any or all assets kept as collateral, mortgage, or any other type of security for a debt.

(k) "Secured Creditor" means a creditor who lends money to a company upon taking security.

(l) "Company in Liquidation" means the state where an order for the dissolution of a company has been issued under this Act.

(m) "Office" means the Insolvency Administration Office established under section 65.

(n) "Insolvency Practitioner" means a person who has obtained a license under section 64 to practice insolvency-related business.

(o) "Investigating Officer" means an Investigating Officer appointed under section 10.

(p) "Restructuring Manager" means a person appointed by the order of the Court under subsection (2) of section 22 to conduct and manage the restructuring program of a company.

(q) "Liquidator" means a person appointed by the order of the Court or according to a resolution passed by a meeting of creditors to carry out the work of dissolving a company, and said term shall also include the Office.

(r) "Related Person" means a director, officer, or shareholder of an insolvent company, or a director, officer, or shareholder of the parent company or subsidiary company of such company, and said term shall also include the husband, wife, son, daughter, adopted son, adopted daughter, father, mother, stepmother, elder brother, younger brother, elder sister, and younger sister of the director, officer, or shareholder of such company or the parent company or subsidiary company of such company.

(s) "Prescribed" or "As Prescribed" means prescribed or as prescribed in the Rules made under this Act.

Chapter 2

Insolvency Proceedings

3. Insolvency Proceedings Not to Be Initiated Without Court Order: No person shall initiate insolvency proceedings against any company except pursuant to an order from the Court under this Act. 4. Petition to Be Filed for Initiating Insolvency Proceedings: (1) If insolvency proceedings are to be initiated against a company, any of the following persons may file a petition in the prescribed format before the Court to proceed with such proceedings:

(a) The insolvent company itself,

(b) A creditor or creditors holding at least ten percent of the total debt among all creditors of the insolvent company,

(c) A shareholder or shareholders holding at least five percent of the total shares among all shareholders of the company,

(d) A debenture holder or debenture holders holding at least five percent of the total debentures among all debenture holders of the company,

(e) A Liquidator appointed for the dissolution of the company, or

(f) In the case of a company operating a specific type of business mentioned in section 8, the body authorized to administer and regulate such business.

(2) For filing a petition under subsection (1), thirty-five days must have elapsed from the date the notice issued for payment of debt under section 5 was duly served on the concerned company.

(3) While filing a petition under subsection (1), the reason for filing such petition, a brief description of the company's financial position, and evidence proving the company's insolvency shall be attached, and the following details shall also be submitted:

(a) If the insolvent company itself files such a petition:-

(1) A document certified by the Board of Directors of the company stating the fact that the company is insolvent,

(2) A special resolution passed by the company's Board of Directors to initiate insolvency proceedings under this Act, and

(3) A certified copy of the company's balance sheet and auditor's report available at the time of filing the

petition for insolvency proceedings.

(b) If a creditor of the insolvent company files a petition:-

- (1) Details of the principal and interest amount of the debt claimed by the creditor as remaining unpaid by the company,
- (2) The date on which the company incurred the debt claimed by the creditor and the reasons for incurring such debt,
- (3) Details showing that the amount under sub-clause (1) remains outstanding and is immediately payable,
- (4) The grounds and basis upon which the creditor believes that the company in respect of which insolvency proceedings are sought is insolvent.

(c) If the Liquidator files a petition:-

- (1) Evidence that the company in respect of which the petition for insolvency proceedings is made has appointed a Liquidator for the purpose of dissolving the company, and
- (2) The opinion expressed by the Liquidator regarding the company's insolvency in respect of which the petition for insolvency proceedings is made, and the basis thereof.

(4) Notwithstanding anything contained elsewhere in this section, a shareholder or debenture holder of a company filing a petition for insolvency proceedings under clause (c) or (d) of subsection (1) must obtain the permission of the Court, and upon obtaining such permission, such person may file a petition subject to the conditions specified by the Court.

(5) The Court shall not grant permission under subsection (4) unless sufficient evidence is submitted to prove the company's insolvency.

5. Notice to Be Given for Payment of Debt: (1) Before filing a petition in the Court under section 4 for insolvency proceedings, a notice issued for payment of debt in the prescribed format shall be sent to the registered office of the company.

(2) The notice under subsection (1) must be signed by the creditor himself or by a person authorized by him on his behalf. 6. Petition May Be Filed to Invalidate the Notice Issued for Payment of Debt: (1) If the notice received under section 5 is not reasonable, or if the debt does not need to be paid immediately for any other reason, the concerned company may file a petition in the Court to invalidate such notice within thirty-five days from the date of receiving the notice.

(2) If a petition under subsection (1) is filed, the Court shall issue a notice to the creditor who gave the notice under section 5 to appear before the Court within seven days, and while issuing such notice, a copy of such petition shall also be attached.

(3) If the creditor appears under subsection (2), the Court may, within seven days from the date of such appearance, or if the creditor does not appear, from the date of expiry of the time limit to appear before the Court, decide on whether to invalidate the notice issued under section 5.

(4) The Court may order the invalidation of the notice issued under section 5 in the following circumstances:-

- (a) If there is a clear dispute as to whether the creditor has actually lent the debt to the company, or
- (b) If the debt remaining unpaid by the company to the creditor does not appear to be immediately payable.

(5) If the Court has made an order under subsection (4), as long as the circumstances in that subsection exist, a fresh notice for payment of debt shall not be given to the company, nor shall a petition for insolvency proceedings be filed in the same matter.

(6) If the Court does not issue an order under subsection (4), the company shall pay the creditor's debt within thirty-five days from that date. 7.

Company Deemed to Be Insolvent: (1) Unless otherwise proven, a company shall be deemed to be insolvent in the following circumstances:- (a) If a special resolution declaring the company insolvent is passed by the General Meeting of shareholders or a decision to this effect is made by the Board of Directors of the company, (b) If there is a court order requiring the company to pay a debt and the debt is not paid according to such order within thirty-five days from the date the company received such order, or (c) If the company fails to pay the debt within thirty-five days of service of the notice issued by the creditor for payment of debt, or fails to file a petition in the Court within the same period to invalidate such notice. (2) Nothing written in this section shall prevent the establishment of a company's insolvency if it is proven by any other means that the company's liabilities exceed the value of its assets, or if the company itself admits that it is insolvent. 8. Petition Not to be Filed for Insolvency Proceedings: (1) Notwithstanding anything contained in section 4, a petition for insolvency proceedings shall not be filed in the Court regarding the following companies without obtaining the prior approval of the following authorities:- (a) In the case of a Bank or Financial Institution engaged in banking and financial transactions, the approval of Nepal Rastra Bank, (b) In the case of an Insurance Company engaged in insurance business, the approval of the Insurance Committee formed under the Insurance Act, 1997 (2049), or (c) In the case of a company which cannot dissolve voluntarily without the approval of a body or authority empowered by prevailing law, other than those mentioned in clauses (a) or (b), the approval of such authority. (2) When filing a petition for insolvency proceedings concerning the companies mentioned in subsection (1), a copy of the approval given by the authority mentioned in that subsection for that purpose shall be submitted along with the petition. 9.

Proceedings on Petition to Be Conducted: (1) If a petition is filed under section 4 to initiate or cause insolvency proceedings concerning a company, the Court shall register such petition if it is duly filed under this Act, and fix a date for hearing thereon within fifteen days. (2) Except where the company itself has filed the petition for insolvency proceedings, after the petition under subsection (1) is registered, a notice shall be issued in the name of the concerned company, served at its registered office, requiring it to submit a written statement within seven days if there is any reason why such proceedings should not be initiated. (3) If the Court deems fit, before the hearing on the petition under this section, it may order the authority mentioned in subsection (1) of section 8 to submit before the Court, prior to the date fixed for hearing, a statement of reasons, if any, for initiating proceedings according to the applicant's demand, and notice thereof shall be published at least twice in any national daily newspaper so as to be available also to the shareholders, creditors, or other persons dealing with the concerned company, or, if such company is listed on a securities market, to the concerned securities market. (4) The company or person receiving the notice issued or published under subsection (2) or (3) shall submit a written statement with reasons within the time limit fixed by the Court if there is any reason why insolvency proceedings concerning the concerned company should not be initiated. 10. Hearing to Be Continued and Decision Made: (1) Notwithstanding anything contained in the prevailing law, in respect of a petition filed under this Chapter, once the hearing commences on the date fixed, the Court shall continue the hearing and make a decision until the final disposal thereof. Provided that, if the hearing cannot be completed or a decision cannot be made on the day of hearing due to lack of time, this provision shall not prevent the continuation of the hearing on that matter on the next day the Court is open. (2) Upon completion of the hearing under subsection (1), the Court shall issue an order to initiate or not to initiate insolvency proceedings concerning the company. (3) While issuing an order under subsection (2), the Court shall issue an order appointing an Insolvency Practitioner as an Investigating Officer for the purpose of conducting an investigation into the insolvency. (4) While appointing an Investigating Officer under

subsection (3), the Court shall appoint a person deemed suitable by the Court from among the persons whose names are included in the list approved by the Office for that purpose. 11.

Interim Order May Be Issued: (1) During the hearing of a petition filed in the Court under section 4, if it appears that the following circumstances exist in the company which may adversely affect the interests of creditors or other persons dealing with the company, the Court may, upon the petition of an interested party or on its own motion, issue an interim order:- (a) If the company's assets are being or may be wrongly sold or transferred, (b) If the company's management is not being properly conducted, (c) If any legal proceedings or enforcement of such proceedings are about to be or may be initiated in a manner that adversely affects the company's assets. (2) While issuing an interim order under subsection (1), the Court may issue an order prohibiting all or any of the following:- (a) Transfer, sale, or creation of any mortgage or pledge over any of the company's assets, except in the ordinary course of its business, (b) Transfer of the company's shares in any manner, or any change in the status of the company's shareholders, (c) Attachment or execution of any of the company's assets by any person, or (d) Initiation or continuation of any legal proceedings, or doing of any act or execution, by any creditor or person against the assets of the company or any assets owned, possessed, or occupied by the company. (3) If an order is made under subsection (2), notice thereof shall be given to the concerned company, the Company Registrar, and the Office, and if the Court deems fit, it may also order publication in a national daily newspaper for general information. (4) If the Court deems necessary, it may issue an order appointing a suitable person as an Interim Administrator of the company for the duration of the subsistence of the interim order, for the interim management of the company. (5) The duties, functions, and powers of an Interim Administrator appointed under subsection (4) shall be as specified by the Court at the time of such appointment. (6) Notwithstanding anything contained elsewhere in this section, the interim order made under this section shall automatically cease to have effect when the Court orders an investigation into insolvency proceedings or dismisses the petition. 12. **Petition Not to Be Withdrawn:** Notwithstanding anything contained in the prevailing law, a petition filed in the Court for insolvency proceedings under section 4 shall not be withdrawn except with the permission of the Court. Chapter 3 Investigation of Insolvency Proceedings 13.

Investigation of Insolvency Proceedings to Be Conducted: (1) If the Court orders an investigation into insolvency proceedings under subsection (3) of section 10, the Investigating Officer shall independently investigate the financial position of the concerned company to determine the following matters:- (a) Whether the financial position of the company is such that it cannot be improved and an order for immediate dissolution should be issued or not, (b) Whether the investigation period under section 14 should be extended or not, (c) Whether an order for restructuring the company through a restructuring program should be issued or not, (d) Whether the company is already insolvent or is likely to become insolvent immediately. (2) The Investigating Officer shall conduct an investigation under subsection (1) and submit an investigation report to the Court within the time period fixed by the Court, and such report shall, in addition to other matters, include any resolution passed by the meeting of creditors, the company's proposal, and the evaluation and recommendations made by the Investigating Officer. 14. **Investigation Period for Insolvency Proceedings May Be Extended:** (1) If the Investigating Officer files a petition before the Court seeking an extension of the investigation period, showing reasonable cause why the financial position of the company could not be investigated within the time fixed under subsection (2) of section 13, the Court may extend the period by an appropriate duration if it deems the cause reasonable. (2) If the investigation period is extended under subsection (1), the concerned company shall be informed thereof. 15.

Management of the Company During Investigation Period: (1) Notwithstanding anything contained in the

prevailing law, during the investigation period of insolvency proceedings, the management and regular business operations of the company shall be conducted by the Board of Directors of the company under the general supervision of the Investigating Officer. (2) Notwithstanding anything contained in subsection (1), if the Investigating Officer submits a report to the Court stating that the Board of Directors has not properly managed the company, the Court may order the removal of the Board of Directors and entrust the Investigating Officer with the management and regular business operations of the company. (3) If the Court orders the Investigating Officer to conduct the management and regular business operations of the company under subsection (2), the Investigating Officer shall conduct business accordingly. (4) While conducting the regular business operations of the company under subsection (3), if any special transaction such as the sale of the company's assets or business is required, a petition shall be filed in the Court for permission, stating the reasons therefor, and if the Court orders granting such permission, the Investigating Officer may carry out such transaction. Added by the Act to Amend Some Acts Relating to Money Laundering Prevention and Business Environment Promotion, 2023 (2080). (5) When filing a petition under subsection (4), if it is necessary to sell assets or property amounting to fifty percent or more of the total assets of the company, a decision shall be obtained from the meeting or group of creditors and a certified copy of such decision shall be attached to the petition. 16. Director to Submit Report: A person who held the position of director of the company at the time of the order under subsection (3) of section 10 for investigation of insolvency proceedings, or within one year prior to that, shall submit a report to the Court in the prescribed format regarding the financial position and transactions of the company during the period of his or her tenure. 17. Loan May Be Taken: (1) If the Investigating Officer considers it necessary to obtain funds to keep the company running or to conduct its regular business operations, he or she may take a loan from any person, with or without providing necessary security. (2) A loan taken under subsection (1) shall be considered as expenses incurred during the investigation period of insolvency proceedings, and such amount shall be paid according to the priority order provided under this Act.

Provided that, if the company has already provided security for taking a loan to some other person previously, the priority of claim over such security shall not be maintained unless the Investigating Officer has made an agreement for that purpose with the person whose claim over it would otherwise be satisfied. 18. Investigating Officer to Submit Report: (1) The Investigating Officer shall investigate the financial and business position of the company and submit a report thereof to the Court within the investigation period.

(2) In the report under subsection (1), in addition to other matters, the Investigating Officer shall determine one of the matters mentioned in subsection (1) of section 13, including the actual financial position of the company, details obtained from the investigation, and the Investigating Officer's opinion and conclusion, and shall state the recommendation along with the basis and reasons therefor in the report.

(3) If the recommendation made under subsection (2) was presented to a meeting of creditors, it shall be mentioned whether the majority of creditors present at such meeting accepted the recommendation or not.

(4) One copy each of the report submitted under subsection (1) shall be sent to the concerned company and the Office, and the concerned company and the Office shall make arrangements to keep such report available for inspection by the shareholders, directors, and creditors of the company. 19.

Automatic Stay: (1) Notwithstanding anything contained in the prevailing law, if the Court has ordered the initiation of insolvency proceedings under subsection (2) of section 10 concerning a company, without the permission of the Court, none of the following transactions shall occur, and if any such proceedings are ongoing but not completed, they shall be automatically stayed:- (a) Transfer, sale, or change of the status of

shares or shareholders of the company, (b) Transfer, sale, or creation of any mortgage or pledge over any assets of the company in any manner, (c) Attachment or execution of any assets of the company or enforcement of security pursuant to any judgment or order, (d) Repossession by the lessor of any property leased by the company, or initiation of any legal proceedings in relation thereto, (e) Payment or provision of security for any debt that remains unpaid or is payable at the time the Court orders the initiation of insolvency proceedings under subsection (2) of section 10, and (f) Transfer or withdrawal of funds from the company's treasury. (2) Notwithstanding anything contained in subsection (1), if any person files a petition in the Court stating that he or she has suffered loss due to the automatic stay of a transaction under that subsection, and if the Court deems that the petitioner's claim is reasonable and that it does not adversely affect the interests of the company or its creditors, the Court may order allowing a transaction. 20. Essential Services Not to Be Discontinued: Notwithstanding anything contained in the prevailing law, if the Court has ordered the initiation of insolvency proceedings concerning a company under subsection (2) of section 10, from the date of such order until such proceedings are completed, an institution or person supplying amended by the Act to Amend Some Acts Relating to Money Laundering Prevention and Business Environment Promotion, 2023 (2080).electricity, drinking water, drainage, gas, amended by the Act to Amend Some Acts Relating to Money Laundering Prevention and Business Environment Promotion, 2023 (2080).telecommunication services, or other essential amended by the Act to Amend Some Acts Relating to Money Laundering Prevention and Business Environment Promotion, 2023 (2080).goods or services supplied pursuant to a contract for the regular business operations of the company shall not stop or discontinue such amended by the Act to Amend Some Acts Relating to Money Laundering Prevention and Business Environment Promotion, 2023 (2080).goods or services being provided to such company without the permission of the Court. Added by the Act to Amend Some Acts Relating to Money Laundering Prevention and Business Environment Promotion, 2023 (2080).20A.

Contract May Be Terminated: Notwithstanding anything contained in the prevailing law, if the Court has ordered the initiation of insolvency proceedings concerning a company under subsection (2) of section 10, and if it appears that continuing any contract for the supply of goods or services made by the company in the past would unnecessarily increase the company's liability, the company or the Liquidator may terminate such contract with the permission of the Court. 21. Meeting of Creditors to Be Called: (1) To ascertain the views of the creditors of an insolvent company regarding its future plans, the Investigating Officer shall, before submitting his or her report to the Court, call a meeting of such creditors to discuss the report, and every person appearing as a creditor of the company from the company's accounts and other records shall also be called to such meeting. (2) Notice shall be given to every person appearing as a creditor under subsection (1), specifying the place, date, time, and subject of discussion, allowing a minimum of seven days' time, and the notice of such meeting shall also be published at least twice in a national daily newspaper. (3) While giving notice under subsection (2), it may be given by written letter, telex, telephone fax, email, or other electronic communication medium that can be recorded. (4) If any person other than those mentioned in subsection (1) claims to be a creditor of the company, the Investigating Officer may require proof thereof and detailed particulars of the claim against the company. (5) The Investigating Officer may reject the claim of a person who fails to provide the proof or particulars under subsection (4), and upon such rejection, such person shall not be entitled to attend the meeting of creditors. Provided that, a person shall not be deemed to be a creditor of the company merely by reason of having participated in the meeting of creditors. (6) The Investigating Officer shall chair the meeting of creditors. (7) Decisions of the meeting of creditors shall be made by a simple majority. In case of a tie, it shall be determined by a lottery system. The Investigating Officer may determine the voting method by establishing the voting rights of creditors in proportion to the

claims submitted regarding debts that are immediately due or payable by the company. (8) Directors of the company or officials invited by the Investigating Officer may participate in the meeting of creditors.

Provided that, they shall not participate in the voting.

(9) No question shall be raised in any court regarding the meeting of creditors and the work performed by it, except upon a petition filed by an interested person stating the cause and basis of being aggrieved by the meeting. 22. Court May Issue Order: (1) Within seven days of receiving the report submitted by the Investigating Officer under subsection (1) of section 18, or a resolution passed by the meeting of creditors, or a restructuring program submitted by the company, or any other passed resolution, the Court may, if it deems appropriate, issue any of the following orders:-

- (a) To dissolve the company immediately,
- (b) To implement the restructuring program of the company,
- (c) To wait for a period specified by the Court if there is a possibility of improvement without immediately dissolving the company,
- (d) To extend the period of insolvency proceedings for further investigation and submission of a report as directed by the Court, or
- (e) To revoke the order issued under subsection (2) of section 10.

(2) If an order is made to dissolve the company or to implement the restructuring program under subsection (1), the Court shall appoint an Insolvency Practitioner as the Liquidator of the company or to conduct the restructuring program, and order the dissolution of the company or the implementation of the restructuring program, and the person so appointed shall complete such task within the period specified by the Court at the time of appointment.

(3) Notwithstanding anything contained elsewhere in this section, if an Investigating Officer files a petition stating that a company has already become insolvent or is in a state where its immediate dissolution is unavoidable, or even if a company is insolvent, that a proposed restructuring program prepared for its improvement can be considered at a meeting of creditors to be called under Chapter 4, and if the Court deems it appropriate to issue such an order, the Court may issue any of the following orders:-

- (a) To terminate the investigation into insolvency proceedings before the expiry of that period,
- (b) That the Investigating Officer need not call a meeting of creditors, or
- (c) To dissolve the company or to restructure the company.

(4) The Court may also issue any other order it deems fit, besides those mentioned in subsection (1) or (3).
Chapter 4

Restructuring Program of Company

23.

Restructuring Program to Be Prepared: (1) If the Court orders the restructuring of a company under subsection (2) of section 22, the Restructuring Manager shall prepare a written restructuring program for the company. (2) The program prepared under subsection (1) shall include the following programs:- (a) Capitalizing the company's debt and altering the capital structure, (b) Selling part of the company's assets to pay creditors' claims, (c) Changing the nature of the claims of the company's creditors and issuing securities therefor, (d) Issuing shares to the company's creditors against their claims and making them participate in the capital investment, (e) Merging the company with another company, (f) Changing the management of the company, or (g) Doing any other necessary act deemed appropriate by the Court for restructuring the

company. 24. Meeting of Creditors to Be Called: (1) The Restructuring Manager appointed by order of the Court to restructure the company under subsection (2) of section 22 shall, within fifteen days of commencing work, give notice to all creditors of the company to submit their respective claims with evidence, following the procedure under subsections (2) and (3) of section 21, and in addition to publishing such notice in national daily newspapers at least twice, such notice may also be posted on a website. (2) Within fifteen days of the issuance of the notice under subsection (1), all creditors, whether secured or unsecured, having any type of debt claim against the company shall submit details of their debt claim to the Restructuring Manager along with evidence proving such claim. (3) Within fifteen days of receiving the details of claims under subsection (2), the Restructuring Manager shall call a meeting of creditors following the procedure under subsections (2) and (3) of section 21, and while calling the meeting, a copy of the restructuring program shall be sent along with the notice. (4) The Restructuring Manager shall chair the meeting called under subsection (3). (5) The meeting of creditors may be conducted and adjourned as necessary.

Provided that, such a meeting shall not be adjourned for a period exceeding the restructuring period without an order of the Court.

(6) Directors of the company may attend the meeting of creditors and answer questions raised by the creditors regarding the company's business and financial position.

(7) At the meeting of creditors called under subsection (3), a discussion shall be held on the details of the restructuring program presented by the Restructuring Manager, and subject to subsection (7) of section 21, a resolution shall be passed on any one of the following matters:-

(a) To accept the restructuring proposal presented by the Restructuring Manager, without any amendment or with amendments, or

(b) To dissolve the company immediately without accepting the proposal under clause (a). Amended by the Act to Amend Some Acts Relating to Money Laundering Prevention and Business Environment Promotion, 2023 (2080). (8) When voting on the resolution under subsection (7), arrangements shall be made for separate voting by unsecured creditors, i.e., those lending to the company without taking security, based on the proportion of the loan given by them or the company's liability. Provided that, a secured creditor shall not have the right to vote.

(9) The restructuring program passed and approved under subsection (7), or the resolution made to dissolve the company upon its rejection, shall be submitted to the Court for approval, and if the Court issues an order approving such resolution, it shall be implemented. 25.

Restructuring Manager to Submit Report: (1) The Restructuring Manager shall submit a report to the Court within the restructuring period, including details of the company's operations, assets and financial position, and if a restructuring program has been proposed, details thereof. (2) If a restructuring program has been proposed in the report under subsection (1), the following matters shall be mentioned in relation to such program:- (a) A brief description and analysis of the proposed program, (b) Details of the possible impact on the company's creditors if the proposed program is implemented, (c) A comparative statement of the returns and impacts that creditors might receive if the company were immediately dissolved, compared to what they might receive if the restructuring program is implemented, and (d) The opinion of the Restructuring Manager, including his or her conclusion, that the company will not become insolvent if the restructuring program is implemented. (3) Except as provided below, the restructuring program proposal prepared under subsection (1) shall have no formal format:- (a) Full details of the program to be implemented by the company in the future and a written description of the relevant proposal, (b) Details of how restructuring the company without

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